

-
File No: EXP202213326

-
RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 27, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SPORTIUM APUESTAS DIGITAL S.A.U. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No: EXP202213326

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on October 14, 2022. The complaint is directed against SPORTIUM APUESTAS DIGITAL S.A.U. with NIF A65640252 (hereinafter, SPORTIUM). The reasons on which the complaint is based are as follows:

The claimant states that their personal data has been used to fraudulently create user accounts on various online gambling websites, including SPORTIUM, to which the responsible parties have been contacted to report the facts and to request access to information related to the creation of the aforementioned accounts.

The claimant states that they sent an email on July 21, 2022, and a burofax on July 25, 2022, to SPORTIUM indicating that their identity has been impersonated on the website sportium.es, and requests the blocking and deletion of the accounts associated with the claimant.

Furthermore, they also request access to the data regarding the transaction history of the accounts in the name of the claimant and the IP addresses from which those accounts were created.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

Finally, they state that, as of the date of filing the complaint with this Agency, no response has been received from SPORTIUM.

Along with the notification, the following is submitted, among others:

- Complaint filed by the claimant with the National Police on July 12, 2022.
- Copy of a letter sent by the General Directorate of Gaming Regulation, dated July 19, 2022, in response to the claimant's request to register for the identity theft alert service on online gambling platforms (Phishing Alert).

This letter shows that the claimant's data has been verified by several operators, including "Sportium." Additionally, it provides contact details for Phishing for "Sportium," which are as follows:

"reclamaciones@sportium.com" and "900.44.77.44"

- Printout of the acknowledgment of receipt of the postal burofax with the letterhead of "www.notificados.com," and tracking number. In this document, EXTERNALIZACIÓN DE NOTIFICADOS Y APLICACIONES ONLINE SL certifies the sending of the burofax on July 25, 2022, addressed to CUSTOMER SERVICE SPORTIUM, CALLE SENA 2-10, POLÍGONO INDUSTRIAL CAN SANT JOAN 08174 SANT CUGAT DEL VALLÈS (BARCELONA), and certifies that the delivery of this document was refused on July 26, 2022.

The acknowledgment of receipt is accompanied by a copy of what is indicated as the content of the burofax, which is a letter addressed to the attention of the customer service of SPORTIUM, in which

the name, surname, and NIF of the claimant are indicated, and it is stated that "The person we represent has been a victim of an identity theft crime carried out, among others, on your website sportium.es. My client has never accessed your domain, nor has they registered as (...) for your service, having detected that the same situation has occurred on several gambling and betting websites." And the following is requested: "We also request that you provide us with a copy of all data regarding the transaction history that may have been carried out using the personal data of (...) client, all in order to clarify the matter and detect possible tax irregularities that, due to the impersonation suffered, may become evident in subsequent fiscal years. Likewise, we request your collaboration to correctly identify the IP addresses from which the false account(s) have been generated and any other relevant information useful for identifying the alleged perpetrator of the reported crime."

- Printout of an email sent by the legal representative of the claimant to SPORTIUM in which a copy of an email sent by this representative to "reclamaciones@sportium.es" dated July 21, 2022, with the subject "IDENTITY THEFT SPORTIUM" is included. This email is a copy of the content of the burofax sent on July 25, 2022, which has been mentioned previously.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/23

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to SPORTIUM, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on January 3, 2023, as evidenced by the acknowledgment of receipt in the file.

On February 3, 2023, this Agency received a response indicating:

1. Indication, regarding the request sent via email by the legal representative of the complainant party, that "SPORTIUM did not receive said request as the email address used is incorrect and does not exist," and they indicate that the request was directed to the email address

"reclamaciones@sportium.es," while "As detailed in the Privacy Policy of SPORTIUM, accessible on the website <https://www.sportium.es/politica-de-privacidad>, users can exercise their data protection rights by contacting our Data Protection Officer at the email address

protecciondedatos@sportium.com. Although SPORTIUM provides the aforementioned email for making requests and/or inquiries related to personal data protection, SPORTIUM is aware of the possibility that users may use means or channels other than email. For example, using the customer service email. Therefore, SPORTIUM has its own 'RGPD Rights Management Manual' available to all individuals in the organization who, by reason of their duties, handle personal data and may receive requests for personal data."

2. Indication, regarding the request sent via burofax, that "At SPORTIUM, multiple requests, certified letters, and burofaxes are received through various channels that are managed with agility and efficiency in a regular manner. After the investigations carried out, there is no record of said burofax, nor of its receipt, nor of its rejection." It is indicated that "as of October 14, 2022, which is when the complaint was submitted to this Agency, SPORTIUM was not aware of the exercise of rights by A.A.A."

3. Regarding the response to the exercise of the right to erasure by the complainant party, they indicate that, after receiving the complaint submitted by the complainant party to the AEPD, "On January 9, 2023, SPORTIUM processed the exercised right to erasure, deactivating and blocking the account '***CUENTA.1', associated with the name and ID number of A.A.A., in accordance with Article 17 of the GDPR."

4. Regarding the response to the exercise of the right of access to their data by the complainant party, they indicate that, after receiving the complaint submitted by the complainant party to the AEPD, they responded as follows:

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/23

"On January 18, 2022, SPORTIUM responded to the request of the interested party, informing A.A.A. that the account associated with their name and ID number had been deactivated, as well as providing all the requested information, in accordance with Article 15 of the GDPR, specifically:

- i. A copy of the identifying personal data;
- ii. A copy of all data regarding the history of operations carried out; and
- iii. Navigation details, including the IP address from which the account was created, coinciding with the day the bets were placed."

5. Indication that "the following corrective measures have been taken to prevent a similar situation from occurring again:

- i. On February 2, 2023, SPORTIUM sent a communication addressed to the reception departments of Sant Cugat and Ceuta, Customer Service, Complaints, and Data Protection, reminding them of the protocol for action upon receiving communications by postal mail both at the offices located in the SCTC building, C/ Sena, 2-10, 08174, Sant Cugat del Vallés (Barcelona) and at Calle Independencia 11 – Entreplanta, 51001, Ceuta. All of this, in order to ensure that, in the case of requests for the exercise of data protection rights, they are processed within the time and manner required by the regulations, as well as to raise awareness of their importance and to remind the established procedure to follow to prevent, at least as far as SPORTIUM is concerned, a similar incident from occurring in the future.
- ii. SPORTIUM has internally documented this action protocol in the Manual for the Management of Personal Data Protection Rights of SPORTIUM, which it already had, and has sent this updated Manual to the involved departments, urging them to review it."

...

"iii. Furthermore, in order to comply with the principle of proactive responsibility set forth in Article 5 of the GDPR, SPORTIUM wishes to inform this Agency that it conducts periodic training on personal data protection."

6. SPORTIUM has provided in this document:

- A printout of an email dated February 2, 2023, which includes another email addressed to several email addresses of the domain "sportium.com" indicating that, following a burofax refused on July 26, 2022, with a request for the exercise of data protection rights, this communication is sent reminding how to manage the receipt of postal mail containing issues related to the protection of personal rights, and it is indicated that the email is attached with an updated manual describing the procedure and the action protocol to follow. Additionally, this email includes an attached document titled "MANUAL GESTIÓN DERECHOS RGPD SPORTIUM ONLINE 2023.docx."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/23

- A copy of the "Manual for the Management of the Exercise of GDPR Rights by Users in SPORTIUM ONLINE," on its version control page, it is noted that there have been four versions of the manual, with the latest version dated January 31, 2023.

THIRD: On January 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On July 20, 2023, a document was submitted to the AEPD on behalf and representation of SPORTIUM, in response to an information request, in which the following information is provided, among others:

1. Indication that "On January 20, 2016, at 4:59:29 hours, the registration of the user account '***CUENTA.1' in the name of A.A.A. with the email ***EMAIL.1 and ID number ***NIF.1 was requested through the registration procedure available on the SPORTIUM website <https://www.sportium.es/register>."

2. SPORTIUM indicates that "the registration process and the requested data are in accordance with the applicable regulations" and claims the application of the Resolution of July 12, 2012, from the Directorate General for the Regulation of Gambling, which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011, of November 14, regarding the identification of participants in games and the control of subjective prohibitions on participation, which establishes in its fourth section of the Annex that:

"The opening of a user registration will begin with the corresponding registration request, in the manner and by means of the system determined by the gaming operator."

And they indicate the following:

"Being this the usual procedure, SPORTIUM received the request for account opening and proceeded with the identity verification process that is outlined and detailed in the second allegation of this document, in accordance with Article 26.3 of Royal Decree 1613/2011, of November 14, which develops Law 13/2011, of May 27, regulating gambling, regarding the technical requirements of gaming activities, which establishes:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/23

"The opening of a user registration will require the participant to provide the referred data and for the operator to verify the truthfulness of the same."

For purely clarifying purposes, the verification of the truthfulness of the data is carried out through an automatic query and direct connection with the web service for player verification of the General Directorate for the Regulation of Gambling (hereinafter, "DGOJ"), which is responsible for verifying that the data entered by the user matches that of the database it holds. Therefore, the obligation to verify the data lies in the act of making the query as such to the DGOJ service, being the latter the one that performs the verification itself, as stated in the following allegation.

In any case, what this party is interested in stating here is that the opening of the account does not occur without prior verification of identity, as it is an indispensable requirement for this and a mandatory compliance for SPORTIUM."

3. SPORTIUM alleges the application of the Resolution of July 12, 2012, of the General Directorate for the Regulation of Gambling, which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011, of November 14, regarding the identification of participants in games and the control of subjective prohibitions to participation, which in the second paragraph of section five of its Annex establishes:

"In cases where the applicant can provide the number of the national identity document (DNI) or the foreign identification number (NIE), the gaming operator may proceed to verify the name, surname, and date of birth of the applicant through the Identity Verification System for Participants of the National Gaming Commission referred to in the following section."

And in the second paragraph of section twelve of its Annex establishes:

"The user registration requested by a participant not residing in Spain and who does not provide the number of the national identity document (DNI) or the foreign identification number (NIE), may be activated by the operator without prior verification of the provided data. In this case, the verification of the data must be carried out by the operator within a maximum period of one month from the activation of the user registration."

And SPORTIUM indicates the following:

"Through a system properly integrated into SPORTIUM, this party performs such verifications automatically, through direct connection and in real-time with the web service for player verification of the DGOJ, which is the one that provides the verification service with a system approved for this purpose and with a database based on the data contained in the Ministry of the Interior. Upon making this connection,

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
7/23

SPORTIUM communicates the full name of the user requesting the account opening, their date of birth, and their identification number. Automatically, the system or service checks the following:

- i. If the data entered by the user corresponds with the data appearing in the referenced database.
- ii. If the person is a minor.
- iii. If the person is listed in the death registry.
- iv. If the person is registered in the General Registry of Access Prohibitions to Gaming.

In the event that all data matches and provided that the user does not fall under any of the causes that prohibit access to gaming as stipulated by applicable regulations, SPORTIUM automatically activates the user's account.

Thus, when the account user “***CUENTA.1” entered the data of A.A.A. in the registration procedure, it was verified, in accordance with the technical requirements determined by the regulator and based on the mandatory regulations for SPORTIUM, that they were not included in any of the aforementioned prohibitions and that the data entered corresponded with the data of A.A.A.

SPORTIUM provides a screenshot of the data regarding the inquiry made to register the user account “***CUENTA.1” which SPORTIUM retains in accordance with the provisions of paragraph 5 of section seven of the Resolution of July 12, 2012, from the General Directorate of Gaming Regulation, which approves the provision that develops articles 26 and 27 of Royal Decree 1613/2011, of November 14, regarding the identification of participants in games and the control of subjective prohibitions to participation.

In this screenshot, there is a record of data with the date of January 20, 2016, for “***CUENTA.1” with the message “NGC verification (NGC service response received for ***CUENTA.1. CheckPlayer: [COD002 – The user is not registered in the RGIAJ. COD003 – The identity of the user is correct])” and it is indicated that “This party assumes that the user or impersonator must or could have been in possession of the personal data of A.A.A., as a result of a possible illicit act, and that, having taken possession of said information by some means or manner unknown to SPORTIUM, they used it to request registration as a user.”

4. Declaration that “since SPORTIUM was unaware and had no means to know that the data (...) was being used without their consent or knowledge, as it had already proceeded to verify their data in accordance with the requirements of applicable regulations, it activated their gaming account, in accordance with article 26.3 of Royal Decree 1613/2011, of November 14, which develops Law 13/2011, of May 27, regulating gaming, in relation to the technical requirements of gaming activities.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
8/23

5. They allege that the Resolution of October 31, 2018, from the General Directorate of Gaming Regulation, which modifies certain resolutions regarding gaming activities provided for in Law 13/2011, of May 27, on the regulation of gaming; which modifies the twelfth section of the Resolution of July 12, 2012, which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011, of November 14, in relation to the identification of participants in games and the control of subjective prohibitions on participation, modified the rule on user registration in such a way that it came to state the following:

“The operator shall proceed as follows:

a) Users whose identity has not been validated in the Identity Verification Service of the participants of the DGOJ or in any other identity verification service shall not be able to play, make deposits, or withdrawals.

b) Users correctly identified through any identity verification system and pending documentary verification may deposit, up to a combined limit of 150 euros, and participate in the games, but shall not be able to withdraw winnings regardless of their amount or nature. The status of these users shall be considered pending documentary verification.

c) Users correctly identified through documentary verification may deposit, participate in the games, and make withdrawals. The status of these users shall be considered active.”

And they declare that “And this is what happened with the user of account ‘***ACCOUNT.1’: having verified that A.A.A. was not included in any of the prohibitions mentioned through the Identity Verification System of the participants of the General Directorate of Gaming Regulation and the General Registry of Access Prohibitions to Gaming, the documentary verification process was activated. Thus, the user could have uploaded to their gaming account a copy of the ID and the payment or deposit methods they wished to use. However, they never did so.”

...

“In any case, the user of the account never completed this process nor uploaded any documentation: neither the copy of the ID nor the payment methods. And yet, they were able to play. Specifically, the user only spent the amount of ten euros (10€) – corresponding to the registration bonus granted by SPORTIUM each time a user registers for the first time. It is for this same reason that SPORTIUM cannot provide this Agency with any copy of the ID or the card or payment method used, since in no case were they provided by the user.”

6. SPORTIUM has provided a printout of a forwarded email sent by ayuda@sportium.es to the email address ***EMAIL.2 dated January 18, 2023, with the subject “Claim” in which the following statements, among others, are indicated:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/23

"We want to inform you that, in accordance with your request for deletion, we have proceeded to deactivate and block the account “***CUENTA.1” associated with your name and ID number.

Furthermore, in response to your request for the right of access to your personal data, in accordance with Article 15 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC, we are attaching to this email an Excel document containing the information that SPORTIUM has about you:

a. Copy of the identifying personal data. As you will see, among your identifying data are your ID number, first name and surname, username with which the account was registered (“***CUENTA.1”), the location from where the registration was made, date of birth, and contact details, among others.

b. Copy of all data regarding the history of operations performed. For your better reference, we inform you that the account was registered on January 20, 2016, and that on the same day, within less than an hour, all transactions were made – specifically, in casino bets. Furthermore, we inform you that the total amount spent is ten euros (10€) corresponding to the registration bonus at SPORTIUM, and that once this amount was reached, no further bets were made.

c. Navigation details, including the IP address from which the account was created, with the only connection occurring on January 20, 2016, coinciding with the day the aforementioned bets were made.”

This email includes an attachment named ***ADJUNTO.1”, of which a printout is provided showing that it contains data about the account “***CUENTA.1”; the bets made, all dated January 20, 2016; and the connection data, which shows that only one connection occurred on January 20, 2016.

A copy of the Resolution of July 12, 2012, from the Directorate General for the Regulation of Gambling,

which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011, of November 14, regarding the identification of participants in games and the control of subjective prohibitions on participation, published in the Official State Gazette (<https://www.boe.es>) on July 19, 2012, is obtained, from which the following relevant information for these proceedings is extracted:

A). In section Five "Verification of user registration data" it establishes:

"1. The operator is responsible for the veracity of the data contained in its user records and for the correct identification of the participants in the games they organize or develop.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/23

2. In cases where the applicant can provide the national identity document (DNI) number or the foreign identification number (NIE), the gaming operator may proceed to verify the name, surname, and date of birth of the applicant through the Identity Verification System for Participants of the National Gaming Commission referred to in the following section.

3. In cases where the applicant identifies as a non-resident in Spain and does not provide the national identity document (DNI) number or the foreign identification number (NIE), the verification of the data will be carried out by the operator within one month from the activation of the registration."

B). In the first paragraph of point 3 of its section Seven "Verification through the Identity Verification System" it establishes:

"Once the query is made, if the data matches those in the Identity Verification System, the operator will receive a positive response and the data will be considered verified."

C). In point 5 of section Seven it establishes:

"The operator will register and retain all queries made to the Identity Verification System, recording the date, time, and minute of the query. The data must be retained, along with those corresponding to the user registration, for the duration of the user registration and for the six years following its cancellation or annulment."

A copy of the Resolution of October 31, 2018, from the Directorate General for the Regulation of Gambling, which modifies certain resolutions regarding the gaming activities provided for in Law 13/2011, of May 27, on the regulation of gambling, published in the Official State Gazette (<https://www.boe.es>) on November 8, 2018, is obtained, from which the following relevant information for these proceedings is extracted:

A). In its section One it establishes:

"Modify the Resolution of July 12, 2012, which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011, of November 14, regarding the identification of participants in games and the control of subjective prohibitions on participation, in the following terms:

1. The fifth section of Annex I is worded as follows:

"Fifth. Verification of identity data and verification of the data provided by participants.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/23

1. The operator is responsible for the accuracy of the data contained in their user records and for the correct identification of the participants in the games they organize or develop.

2. In cases where the applicant can provide their national identity document number (DNI) or foreign identification number (NIE) during the registration process, operators must:

a) Verify the identity data in their user records, either through the Identity Verification System for participants of the General Directorate of Gaming Regulation, or through other systems or alternative verification means.

b) Documentarily verify the data provided by the participant.

3. In cases where the applicant identifies themselves as a non-resident in Spain during the registration process and does not provide their national identity document number (DNI) or foreign identification number (NIE), the verification and checking of the data, which will be carried out through the documentary verification system deemed appropriate, will be conducted by the operator within one month from the completion of the registration process.

4. The operator will take appropriate measures to prevent resident users from registering as non-resident users.

B). In its first section, paragraph 1 of the twelfth section regarding "Activation of the user registration" of the Resolution of July 12, 2012, which approves the provision that develops Articles 26 and 27 of Royal Decree 1613/2011 of November 14, concerning the identification of participants in games and the control of subjective prohibitions on participation, is modified to read as follows:

"The activation of user registrations in which the applicant is a resident in Spain or has provided their national identity document number (DNI) or foreign identification number (NIE) requires prior verification of their data in the terms provided in paragraph 2 of section five of this Resolution, and the verification that they are not registered in the General Registry of Access Prohibitions to Gaming.

The operator will proceed as follows:

a) Users whose identity has not been validated in the Identity Verification Service of participants of the DGOJ or in any other identity verification service will not be able to play, make deposits, or withdrawals.

b) Users correctly identified through any identity verification system and pending documentary verification may deposit, up to a combined limit of 150 euros, and participate in the games, but will not be able to withdraw prizes regardless of their amount or nature. The status of these users will be considered pending documentary verification.

c) Users correctly identified through documentary verification may deposit, participate in the games, and make withdrawals. The status of these users will be considered active."

C). In its single additional provision "Entry into force," it establishes that "This Resolution will come into force on March 30, 2019."

On October 27, 2023, the inspection services of this Agency captured the content of the privacy policy of the website <https://www.sportium.es> (contained in the webpage

<https://www.sportium.es/politica-de-privacidad>), obtaining, among other information, the following:

a). Within the section on "WHAT TREATMENTS DO WE CARRY OUT ON YOUR PERSONAL DATA AND WHAT RIGHTS CAN YOU EXERCISE?", in the subsection on "How to exercise these rights?", the following is indicated:

"You can exercise your right by sending your request to the following email address:

protecciondedatos@sportium.com or by postal mail, proving your identity, addressed to: Sportium Customer Service Department, SCTC building, C/ Sena, 2-10, 08174 Sant Cugat del Vallés (Barcelona).

Furthermore, we inform you that if you believe that Sportium has not satisfactorily addressed the exercise of your rights, you may file a complaint with the Spanish Data Protection Agency (AEPD) by visiting their website <http://www.aepd.es>."

On October 27, 2023, the inspection services of this Agency captured the historical content of the webpage <https://www.sportium.es/politica-de-privacidad> within the site <https://web.archive.org/>, without being able to obtain what the historical content of the webpage

<https://www.sportium.es/politica-de-privacidad> was.

On October 31, 2023, a document was submitted to the AEPD on behalf of EXTERNALIZACION DE NOTIFICADOS Y APLICACIONES ONLINE SL (the company operating the website www.notificados.com), in response to an information request, which included, among other information, the following:

1. Certification of the text of the postal burofax, which matches that presented by the complaining party both in its content and in the sender, at the destination address, and in the dates of sending (July 25, 2022) and of refusal (July 26, 2022).

2. Indication that the final result of Refused "indicates that the burofax was not delivered, as the

recipient expressly refused to collect the shipment."

13/23

FIFTH: According to the report obtained from the AXESOR tool, the entity SPORTIUM APUESTAS DIGITAL S.A.U. is a "Group subsidiary" type company with sales in the fiscal year 2021 of

***AMOUNT.1 € and a number of employees of 18.

LEGAL GROUNDS

I

Competence

According to the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is processing of personal data, since SPORTIUM collects and retains, among others, the following personal data of individuals: name and surname, date of birth, email address, ID number, among other processing activities.

SPORTIUM carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

On its part, Article 15 of the GDPR regulates the right of access of the data subject, while Article 17 of the GDPR regulates the right to erasure (right to be forgotten).

III

Right of Access

Article 15 of the GDPR, titled "Right of access of the data subject," establishes:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/23

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. Where personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating

to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In this case, according to the documentation in the file, it has been established that the complainant, upon becoming aware of an account opened on the online gaming website corresponding to SPORTIUM (sportium.es), sent an email on July 21, 2022, and a burofax on July 25, 2022, with the acknowledgment of receipt indicating that it was refused on July 26, 2022, stating that their identity had been impersonated, and requesting the blocking and deletion of that account, as well as access to

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/23

the data regarding the historical operations of the accounts in your name, and the IP address from which said account was generated.

SPORTIUM has stated that the email address to which the exercise of rights was sent was incorrect and did not exist. However, it has been established that the burofax was sent on July 25, 2022, which was refused on July 26, 2022, as evidenced by the acknowledgment of receipt included in the file.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered that the known facts could constitute an infringement attributable to SPORTIUM for violation of Article 15 of the GDPR.

IV

Classification and qualification of the infringement of Article 15 of the GDPR

If confirmed, the aforementioned infringement of Article 15 of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations, Article 72 "very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall prescribe after three years, which entail a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction for the infringement of Article 15 of the GDPR

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/23

For the purposes of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to the outcome of the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm suffered (paragraph a): for the improper attention to the right of access that affected one person, from July 2022, the date it was requested, noting that said sending was refused, until January 18, 2023, the date on which the requested information was communicated to the claimant, once the first communication was received from this Agency.

Furthermore, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

The link of the infringer's activity with the processing of personal data (paragraph b): The entity carries out a high volume of personal data processing for the development of its activity.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 15 of the GDPR, allows for an initial administrative fine of 20,000 euros to be set.

VI

Right to erasure

Article 17 "Right to erasure ('the right to be forgotten') of the GDPR states:

"1. The data subject shall have the right to obtain from the controller without undue delay the erasure of personal data concerning them, which the controller shall be obliged to erase without undue delay when one of the following circumstances applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal basis;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

17/23

c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;

d) the personal data have been unlawfully processed;

e) the personal data must be erased to comply with a legal obligation established in Union law or the law of the Member States applicable to the data controller;

f) the personal data have been obtained in relation to the offering of information society services referred to in Article 8, paragraph 1.

(...)

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for the exercise of the right to freedom of expression and information;

b) for compliance with a legal obligation requiring processing of data imposed by Union law or the law of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical

purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 is likely to render impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims.

In the present case, in accordance with the documentation in the file, it has been established that the claimant, upon becoming aware of an account opened on the online gaming website corresponding to SPORTIUM (sportium.es), sent an email on July 21, 2022, and a burofax on July 25, 2022, with the acknowledgment of receipt indicating that it was refused on July 26, 2022, stating that their identity had been impersonated, and requesting the blocking and deletion of said account, as well as access to the data regarding the historical operations of the accounts in their name, and the IP address from which said account was created.

SPORTIUM has stated that the email address to which this exercise of rights was sent was incorrect and did not exist. However, it has been established that the burofax was sent on July 25, 2022, which was refused on July 26, 2022, as evidenced by the acknowledgment of receipt included in the file.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/23

Therefore, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement attributable to SPORTIUM for violation of Article 17 of the GDPR.

VII

Classification and qualification of the infringement of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22;

(...)"

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The hindrance or obstruction or repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

VIII

Proposal for sanction for the infringement of Article 17 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment regarding the initiation of sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered appropriate to scale the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number

C/ Jorge Juan, 6

www.aepd.es
28001 – Madrid
sedeagpd.gob.es
19/23

of affected interested parties and the level of damages and losses they have suffered (section a): for the failure to properly address the right to erasure that affected a person, since July 2022, the date on which it was requested, noting that such request was refused, until January 18, 2023, the date on which the requested information was communicated to the claimant, once the first communication was received from this Agency.

Furthermore, it is considered appropriate to adjust the sanction to be imposed in accordance with the following criteria established in section 2 of Article 76

“Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

The link between the infringer's activity and the processing of personal data (section b): The entity carries out a high volume of personal data processing for the development of its activity.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 17 of the GDPR, allows for an initial administrative fine of 20,000 euros.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SPORTIUM APUESTAS DIGITAL S.A.U., with NIF A65640252,

- for the alleged infringement of Article 15 of the RGPD, classified in Article 83.5 of the GDPR;
- for the alleged infringement of Article 17 of the RGPD, classified in Article 83.5 of the GDPR.

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

20/23

- For the alleged infringement of Article 15 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 20,000.00 euros
- For the alleged infringement of Article 17 of the GDPR, classified in Article 83.5 of said regulation, an administrative fine of 20,000.00 euros

FIFTH: TO NOTIFY this agreement to SPORTIUM APUESTAS DIGITAL S.A.U., with NIF A65640252, granting a hearing period of ten working days for it to submit

allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the submission of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at 32,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make a voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 32,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are to be applied, the amount of the sanction would be set at 24,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (32,000.00 euros or 24,000.00 euros), it must be made effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/23

Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

935-30102023

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On January 16, 2024, the respondent has proceeded to pay the fine in the amount of 24,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

22/23

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213326, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to SPORTIUM APUESTAS DIGITAL S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

23/23

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es